

STRUCTURE OF GOVERNMENT & CONSTITUTIONAL DEVELOPMENT, 1757-1858

THE COMPANY-STATE CONSTITUTIONAL PROBLEM → REGULATING ACT 1773: FIRST → WHY THE 1773 DESIGN → AMENDING ACT 1781: TARGETED → PITT'S INDIA ACT 1784 → EXECUTIVE CONSOLIDATION, 1786-1793

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 THE COMPANY-STATE CONSTITUTIONAL PROBLEM

THE COMPANY-STATE CONSTITUTIONAL PROBLEM

LONDON COMPANY

SHAREHOLDERS, DIRECTORS, TRADE AND PATRONAGE

INDIAN SOVEREIGN

REVENUE, WAR, JUSTICE AND LEGISLATION AFTER DIWANI

PRIVATE PROFIT JOINED TO PUBLIC COERCIVE POWER

PARLIAMENTARY RESPONSE

REGULATE, SUPERVISE, CENTRALISE AND FINALLY TRANSFER RULE.

LONDON COMPANY → shareholders, directors, trade and patronage

INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

CONTRADICTION → private profit joined to public coercive power

PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CORE CLAIM

- LONDON COMPANY → shareholders, directors, trade and patronage
- INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

MECHANISM

- CONTRADICTION → private profit joined to public coercive power
- PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CONSEQUENCE / LIMIT

- LONDON COMPANY → shareholders, directors, trade and patronage
- INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

01

STAGE 01 REGULATING ACT 1773: FIRST FRAMEWORK

REGULATING ACT 1773

FIRST FRAMEWORK

GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR

WARREN HASTINGS FIRST

SUBORDINATED IN WAR AND PEACE, WITH PRACTICAL AMBIGUITIES

SUPREME COURT AT CALCUTTA

BEGINS 1774 UNDER CROWN-APPOINTED JUDGES

DIRECTORS REPORT TO MINISTRY

GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first

BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges

DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CORE CLAIM

- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
- BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

MECHANISM

- SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges
- DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CONSEQUENCE / LIMIT

- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

02

STAGE 02 WHY THE 1773 DESIGN MALFUNCTIONED

WHY THE 1773 DESIGN MALFUNCTIONED

COUNCIL ARITHMETIC

FRANCIS-CLAVERING-MONSON MAJORITY CAN OUTVOTE HASTINGS

JURISDICTIONAL OVERLAP

SUPREME COURT CLASHES WITH COMPANY REVENUE AND CIVIL COURTS

NAND KUMAR, PATNA AND COSSIJURAH EXPOSE UNCERTAINTY

CONSTITUTIONAL REPAIR FOLLOWS ADMINISTRATIVE CONFLICT, NOT A SMOOTH MASTER

COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings

JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

CASES → Nand Kumar, Patna and Cossijurah expose uncertainty

LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CORE CLAIM

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

MECHANISM

- CASES → Nand Kumar, Patna and Cossijurah expose uncertainty
- LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CONSEQUENCE / LIMIT

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

CASES → Nand Kumar, Patna and Cossijurah expose uncertainty

LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CORE CLAIM

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

MECHANISM

- CASES → Nand Kumar, Patna and Cossijurah expose uncertainty
- LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CONSEQUENCE / LIMIT

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

03

STAGE 03

AMENDING ACT 1781: TARGETED JURISDICTIONAL REPAIR

AMENDING ACT 1781

TARGETED JURISDICTIONAL REPAIR

OFFICIAL ACTS AND REVENUE MATTERS EXPOSED TO DISPUTED COURT

OFFICIAL PUBLIC ACTS EXEMPTED; REVENUE JURISDICTION EXCLUDED

PERSONAL LAW

HINDU AND MUSLIM LAW TO GUIDE RELEVANT CASES

CORRECTED COURT-EXECUTIVE CONFLICT, NOT THE COUNCIL VOTING PROBLEM.

CORE CLAIM

- BEFORE → official acts and revenue matters exposed to disputed Court reach
- 1781 → official public acts exempted; revenue jurisdiction excluded

MECHANISM

- PERSONAL LAW → Hindu and Muslim law to guide relevant cases
- LIMIT → corrected Court-executive conflict, not the Council voting problem.

CONSEQUENCE / LIMIT

- BEFORE → official acts and revenue matters exposed to disputed Court reach
- 1781 → official public acts exempted; revenue jurisdiction excluded

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → corrected Court-executive conflict, not the Council voting problem.

04

STAGE 04

PITT'S INDIA ACT 1784: DUAL CONTROL IN BRITAIN

PITT'S INDIA ACT 1784

DUAL CONTROL IN BRITAIN

COURT OF DIRECTORS

COMMERCE, APPOINTMENTS AND ROUTINE COMPANY ADMINISTRATION

BOARD OF CONTROL

CROWN-SUPERVISED POLITICAL, MILITARY AND REVENUE DIRECTION

STRONGER BENGAL CONTROL OVER PRESIDENCIES AND SMALLER EXECUTIVE COUNCIL

SUPERVISION WITHOUT IMMEDIATE CROWN TAKEOVER.

BOARD OF CONTROL → Crown-supervised political, military and revenue direction

COURT OF DIRECTORS → commerce, appointments and routine Company administration

INDIA → stronger Bengal control over presidencies and smaller executive council

VERDICT → supervision without immediate Crown takeover.

CORE CLAIM

- COURT OF DIRECTORS → commerce, appointments and routine Company administration
- BOARD OF CONTROL → Crown-supervised political, military and revenue direction

MECHANISM

- INDIA → stronger Bengal control over presidencies and smaller executive council
- VERDICT → supervision without immediate Crown takeover.

CONSEQUENCE / LIMIT

- COURT OF DIRECTORS → commerce, appointments and routine Company administration
- BOARD OF CONTROL → Crown-supervised political, military and revenue direction

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIA → stronger Bengal control over presidencies and smaller executive council.

05

STAGE 05

EXECUTIVE CONSOLIDATION, 1786-1793

EXECUTIVE CONSOLIDATION, 1786-1793

CORNWALLIS MAY OVERRIDE COUNCIL IN SPECIAL CASES AND SERVE

OVERRIDE POWER GENERALISED TO FUTURE GOVERNORS-GENERAL AND GOVERNORS

COMPANY MONOPOLY RENEWED FOR TWENTY YEARS

STRONGER PERSONAL EXECUTIVE WITHIN A STILL COMPANY-RUN CONSTITUTION.

1786 → Cornwallis may override council in special cases and serve as commander

1793 → override power generalised to future governors-general and governors

1793 → Company monopoly renewed for twenty years

DIRECTION → stronger personal executive within a still Company-run constitution.

CORE CLAIM

- 1786 → Cornwallis may override council in special cases and serve as commander
- 1793 → override power generalised to future governors-general and governors

MECHANISM

- 1793 → Company monopoly renewed for twenty years
- DIRECTION → stronger personal executive within a still Company-run constitution.

CONSEQUENCE / LIMIT

- 1786 → Cornwallis may override council in special cases and serve as commander
- 1793 → override power generalised to future governors-general and governors

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTION → stronger personal executive within a still Company-run constitution.

06

STAGE 06

CHARTER ACT 1813: PARTIAL COMMERCIAL OPENING

CHARTER ACT 1813

PARTIAL COMMERCIAL OPENING

COMPANY MONOPOLY OVER INDIAN TRADE

TEA MONOPOLY AND TRADE WITH CHINA

CROWN SOVEREIGNTY CLAIM, MISSIONARY ENTRY AND EDUCATION PROVISION

BRITISH INDUSTRIAL ACCESS EXPANDS WHILE THE COMPANY REMAINS TERRITORIAL

CORE CLAIM

ENDED → Company monopoly over Indian trade

RETAINED → tea monopoly and trade with China

MECHANISM

ADDED → Crown sovereignty claim, missionary entry and education provision

MEANING → British industrial access expands while the Company remains territorial ruler

CONSEQUENCE / LIMIT

ENDED → Company monopoly over Indian trade

RETAINED → tea monopoly and trade with China

• 1793 → override power generalised to future governors-general and governors

• DIRECTION → stronger personal executive within a still Company-run constitution.

• 1793 → override power generalised to future governors-general and governors

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTION → stronger personal executive within a still Company-run constitution.

06

STAGE 06

CHARTER ACT 1813: PARTIAL COMMERCIAL OPENING

CHARTER ACT 1813

PARTIAL COMMERCIAL OPENING

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TEA MONOPOLY AND TRADE WITH CHINA

CROWN SOVEREIGNTY CLAIM, MISSIONARY ENTRY AND EDUCATION PROVISION

BRITISH INDUSTRIAL ACCESS EXPANDS WHILE THE COMPANY REMAINS TERRITORIAL

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
ENDED → Company monopoly over Indian trade	ADDED → Crown sovereignty claim, missionary entry and education provision	ENDED → Company monopoly over Indian trade
RETAINED → tea monopoly and trade with China	MEANING → British industrial access expands while the Company remains territorial ruler.	RETAINED → tea monopoly and trade with China

CORE CLAIM

• ENDED → Company monopoly over Indian trade

• RETAINED → tea monopoly and trade with China

MECHANISM

• ADDED → Crown sovereignty claim, missionary entry and education provision

• MEANING → British industrial access expands while the Company remains territorial ruler.

CONSEQUENCE / LIMIT

• ENDED → Company monopoly over Indian trade

• RETAINED → tea monopoly and trade with China

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MEANING → British industrial access expands while the Company remains territorial ruler.

07

STAGE 07

CHARTER ACT 1833: ALL-INDIA CENTRALISATION

CHARTER ACT 1833

ALL-INDIA CENTRALISATION

GG OF BENGAL

GOVERNOR-GENERAL OF INDIA; WILLIAM BENTINCK FIRST

PRESIDENCY LEGISLATURES

LEGISLATIVE POWER CENTRALISED IN THE GOVERNMENT OF INDIA

LAW MEMBER + LAW COMMISSION

MACAULAY AND CODIFICATION DRIVE

GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first

PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India

LAW MEMBER + LAW COMMISSION → Macaulay and codification drive

COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
• GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first • PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India	• LAW MEMBER + LAW COMMISSION → Macaulay and codification drive • COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.	• GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first • PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

08

STAGE 08

THE 1833 EQUALITY PROMISE AND PRACTICE GAP

THE 1833 EQUALITY PROMISE AND PRACTICE GAP

STATUTORY LANGUAGE

INDIANS NOT TO BE EXCLUDED FROM COMPANY OFFICE BY

INSTITUTIONAL REALITY

PATRONAGE AND RACIAL BARRIERS REMAIN

EXAM DISTINCTION

1833 VOICES OPEN ELIGIBILITY; IT DOES NOT CREATE THE

ANALYTICAL USE

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
• STATUTORY LANGUAGE → Indians not to be excluded from Company office by identity • INSTITUTIONAL REALITY → patronage and racial barriers remain	• EXAM DISTINCTION → 1833 voices open eligibility; it does not create the 1853 exam • ANALYTICAL USE → liberal language coexists with an unrepresentative imperial state.	• STATUTORY LANGUAGE → Indians not to be excluded from Company office by identity • INSTITUTIONAL REALITY → patronage and racial barriers remain

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANALYTICAL USE → liberal language coexists with an unrepresentative imperial state.

09

STAGE 09

CHARTER ACT 1853: LEGISLATURE AND RECRUITMENT

CHARTER ACT 1853

LEGISLATURE AND RECRUITMENT

EXECUTIVE COUNCIL

LEGISLATIVE MEMBERS ADDED FOR A DISTINCT LAW-MAKING FUNCTION

CENTRAL LEGISLATIVE COUNCIL

PROCEDURE RESEMBLES A SMALL OFFICIAL PARLIAMENT

OPEN COMPETITION

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function

CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

OPEN COMPETITION → civil-service recruitment principle implemented through later rules

LIMIT → London examination and access barriers make formal openness unequal in practice.

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
• EXECUTIVE COUNCIL → legislative members added for a distinct law-making function • CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament	• OPEN COMPETITION → civil-service recruitment principle implemented through later rules • LIMIT → London examination and access barriers make formal openness unequal in practice.	• EXECUTIVE COUNCIL → legislative members added for a distinct law-making function • CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → London examination and access barriers make formal openness unequal in practice.

STRUCTURE OF GOVERNMENT & CONSTITUTIONAL DEVELOPMENT, 1757-1858 • TILE 3/4 • same master rows 5189-8423 of 11018 • continues below

CHARTER ACT 1853LEGISLATURE AND RECRUITMENTEXECUTIVE COUNCILLEGISLATIVE MEMBERS ADDED FOR A DISTINCT LAW-MAKING FUNCTIONCENTRAL LEGISLATIVE COUNCILPROCEDURE RESEMBLES A SMALL OFFICIAL PARLIAMENTOPEN COMPETITION

CIVIL-SERVICE RECRUITMENT PRINCIPLE IMPLEMENTED THROUGH LATER RULES

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function

CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

OPEN COMPETITION → civil-service recruitment principle implemented through later rules

LIMIT → London examination and access barriers make formal openness unequal in practice.

CORE CLAIM

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function
CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

MECHANISM

OPEN COMPETITION → civil-service recruitment principle implemented through later rules
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CONSEQUENCE / LIMIT

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function
CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → London examination and access barriers make formal openness unequal in practice.

10

STAGE 10

GOVERNMENT OF INDIA ACT 1858: TRANSFER, NOT REINVENTION

GOVERNMENT OF INDIA ACT 1858TRANSFER, NOT REINVENTIONCOMPANY RULE, COURT OF DIRECTORS AND BOARD OF CONTROLSECRETARY OF STATE FOR INDIA ASSISTED BY AN INDIA GOVERNOR-GENERAL ALSO BECOMES VICEROY; CANNING FIRST

CENTRAL EXECUTIVE, COUNCILS, CODES AND BUREAUCRACY LARGELY SURVIVE TRANSFER.

ABOLISHED → Company rule, Court of Directors and Board of Control

CREATED → Secretary of State for India assisted by an India Council

INDIA → Governor-General also becomes Viceroy; Canning first

CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CORE CLAIM

ABOLISHED → Company rule, Court of Directors and Board of Control
CREATED → Secretary of State for India assisted by an India Council

MECHANISM

INDIA → Governor-General also becomes Viceroy; Canning first
CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CONSEQUENCE / LIMIT

ABOLISHED → Company rule, Court of Directors and Board of Control
CREATED → Secretary of State for India assisted by an India Council

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ABOLISHED → Company rule, Court of Directors and Board of Control.

11

STAGE 11

CONSTITUTIONAL LADDER, 1773-1858

CONSTITUTIONAL LADDER, 1773-18581773 OVERSIGHT1781 JURISDICTIONAL REPAIR1784 CROWN SUPERVISION1813 MONOPOLY BREACH1833 CENTRAL GOVERNMENT + CODIFICATION1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT1858 CROWN RULE

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION

1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT

1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CORE CLAIM

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION
1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

MECHANISM

1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT
1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CONSEQUENCE / LIMIT

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION
1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1858 CROWN RULE → sovereign changes; colonial centralisation remains.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTTHE COMPANY'S TERRITORIAL AUTHORITY AFTER 1765 CREATED A CONTRADICTIONA PROFIT-SEEKING COMMERCIALCORPORATION WAS COLLECTING REVENUE, MAINTAINING ARMIES AND DISPENSING JUSTICE

THE REGULATING ACT, 1773 WAS PARLIAMENT'S FIRST SERIOUS ATTEMPTGIVING BENGAL PRIMACY, ESTABLISHING A GOVERNOR-GENERAL-IN-COUNCIL AND CREATING THE THE ACT'S DEFECTS WERE IMMEDIATECONFLICT BETWEEN THE GOVERNOR-GENERAL AND COUNCIL, TENSION BETWEEN THE

OPTIONAL SOURCE DEPTH

The Company's territorial authority after 1765 created a contradiction: a profit-seeking commercial
corporation was collecting revenue, maintaining armies and dispensing justice in India.
The Regulating Act, 1773 was Parliament's first serious attempt to control this contradiction by
giving Bengal primacy, establishing a Governor-General-in-Council and creating the Supreme Court at Calcutta.

ADVANCED DEBATE

The Act's defects were immediate: conflict between the Governor-General and Council, tension between the Supreme
Court and Company courts, and unclear limits of Bombay and Madras in war and diplomacy.
The Amending Act, 1781 attempted to remove these practical defects by
clarifying jurisdiction and protecting official actions from excessive judicial interference.

LEGACY / NUANCE

CAUTION: The constitutional story is therefore not a smooth liberal evolution
it is a sequence of emergency repairs to keep imperial extraction administratively stable.
Pitt's India Act, 1784 produced dual government in Britain: the Court of Directors managed Company
affairs while the Board of Control supervised political matters in the name of the Crown.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.